

TENTATIVE RULING

Brian Lofman
v.
Hartnell College, et al.
24CV004063

Plaintiff's Motion for Summary Adjudication

Hearing Date: July 17, 2026

The motion of Plaintiff Brian Lofman ("Plaintiff") for summary adjudication of certain affirmative defenses asserted in the First Amended Answer ("Answer") of Defendants Hartnell College ("Hartnell"), Steven Crow, and Dianna Rose (collectively, "Defendants") is **DENIED IN PART** as to the Second, Ninth, Twenty-First, Twenty-Fifth, Twenty-Seventh, and Twenty-Eighth Affirmative Defenses, **and GRANTED IN PART** as to the Fifth, Seventh, Twenty-Sixth, and Twenty-Ninth Affirmative Defenses.

Plaintiff's Request for Judicial Notice is **GRANTED**. As detailed below, each party's evidentiary objections are **SUSTAINED IN PART AND OVERRULED IN PART**.

Legal Standard.

A party may file a noticed motion for summary adjudication to argue that one or more causes of action, affirmative defenses, claims for damages, or issues of duty lack merit. [Code Civ. Proc. § 437c, subd. (f)(1); *see Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.] Such a motion proceeds "in all procedural respects as a motion for summary judgment." [Code Civ. Proc. § 437c, subd. (f)(2).]

Courts follow a three-step process when reviewing a motion for summary adjudication: (1) identify the issues outlined by the pleadings; (2) evaluate whether the moving party has disproved the opponent's claims; and (3) assess if the opposition has shown there is a triable factual issue. [*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.]

When a plaintiff moves for summary adjudication on an affirmative defense, the court should grant the motion "*only if it completely disposes of the defense.*" [*See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 899-900 (original emphasis; internal quotes and citation omitted).] As the moving party, the plaintiff bears the initial burden of showing that there is no triable issue of material fact regarding the defense and that they are entitled to judgment on the defense as a matter of law. [*Id.* at 900.] To satisfy this burden, the plaintiff must either negate an essential element of the defense or demonstrate that the defendant lacks and cannot reasonably obtain the evidence necessary to support the defense. [*Ibid.*] For example, when the defendant has had sufficient opportunity for discovery, their vague responses to comprehensive discovery requests may indicate that one or more elements of their affirmative defense cannot be proven, or that the defendant does not have and cannot reasonably obtain the evidence needed to support that defense. [*See, e.g., Union Bank v. Superior Court* (1995) 31

Cal.App.4th 573, 590; *Scheiding v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64, 80-81; *Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1441-1442.]

If the plaintiff fails to meet that burden, the motion is denied, and the court does not need to examine the opposing papers. [*See*’s *Candy*, 210 Cal.App.4th at 900.] However, if the plaintiff meets their burden, the burden shifts to the defendant to demonstrate that a triable issue of one or more material facts exists regarding that affirmative defense. [*Ibid.*; *Aguilar*, 25 Cal.4th at 849.] The defendant cannot rely solely on allegations or denials in their pleadings; instead, they must present specific facts showing a triable issue of material fact concerning the affirmative defense. [Code Civ. Proc. § 437c, subd. (p)(1).] A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion, according to the applicable standard of proof. [*Aguilar*, 25 Cal.4th at 850.]

The court must liberally construe the evidence presented by the party opposing summary adjudication, resolving all doubts and making all reasonable inferences in favor of that party. [*Aguilar*, 25 Cal.4th at 844-845.] When reviewing such a motion, the court must consider what inferences a factfinder could reasonably draw to favor the opposing party. [*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.] In a motion for summary adjudication, the main role of the court is to identify issues, not to decide them; only clear and indisputable inferences can lead to a legal resolution. [*Ibid.*] If evidence conflicts, factual disputes must be resolved at trial. [*Ibid.*] Moreover, the trial court cannot weigh evidence like a factfinder to determine credibility, nor can it grant summary adjudication based on credibility evaluations. [*Id.* at 840.]

Discussion.

1. Plaintiff’s Request for Judicial Notice (“RJN”).

Plaintiff’s request to judicially notice the Compromise and Release [RJN Exh. 1] and the Order Approving Compromise and Release [RJN Exh. 2] in the workers’ compensation action, as well as the First Amended Complaint in this case [RJN Exh. 3], is **GRANTED**. [Evid. Code §§ 453 and 452, subs. (c) and (d).]

2. Evidentiary Objections.

The Court rules on each party’s evidentiary objections as follows:

PLAINTIFF’S OBJECTIONS		
No.	Cite	Ruling
1	Rose Decl. at ¶ 7 (2:17)	SUSTAINED. Lacks foundation.
2	Crow Decl. at ¶¶ 6 (2:15) and 7 (2:22)	OVERRULED.
3	Rose Decl. at ¶ 3 (1:26-28)	OVERRULED.

DEFENDANTS' OBJECTIONS		
No.	Cite	Ruling
1	Dixon Decl. at ¶ 11 (3:15-18)	OVERRULED. The Court interprets these statements as an attorney's argument rather than evidentiary facts.
2	Dixon Decl. at ¶ 12 (3:19-22)	
3	Dixon Decl. at ¶ 13 (3:23-26)	
4	Dixon Decl. at ¶ 14 (3:27-4:2) and Exh. G	SUSTAINED. Inadmissible hearsay. Plaintiff has not demonstrated that it is admissible under a hearsay exception. It is unclear from the document who made the statement, "[t]hey wanted to get rid of [Plaintiff] and they didn't do it the right way." Additionally, the relevant parts of this document appear to reflect Rachel Shaw's impressions of Defendants' conduct and/or statements, which are not authorized admissions.

3. Motion for Summary Adjudication of Affirmative Defenses.

a. Second.

The motion is **DENIED** because Plaintiff no longer requests adjudication of that defense. [Reply at 7:25-8:4.]

b. Fifth and Seventh

The motion is **GRANTED** because Defendants have withdrawn them from their Answer. [Opp. at 11:9-11.]

c. Ninth.

In their Ninth Affirmative Defense, Defendants allege that the "doctrine of unclean hands" bars, in whole or in part, Plaintiff's claims against them. [Answer at 3:17-20.] To meet their initial summary-adjudication burden, Plaintiff claims that nothing in the verified responses of Mr. Crow and Ms. Rose to his Request for Admissions ("RFA") and Form Interrogatories shows that Plaintiff committed "any inequitable conduct...that relates to the subject matter of this action." [Plaintiff's Undisputed Material Fact ("Plaintiff's Fact(s)") 35.]

Plaintiff has not met his initial summary-adjudication burden. First, Plaintiff fails to demonstrate that he propounded sufficiently comprehensive discovery related to the Ninth Affirmative Defense. He did not cite a specific request in the RFAs or Form Interrogatories that pertains to the Ninth Affirmative Defense. [Plaintiff's Fact 35.] Furthermore, it appears that the RFAs and Form Interrogatories propounded on Ms. Rose relate to conduct by Hartnell and its consultant.

The closest request that might relate to unclean hands is RFA 38 to Mr. Crow. That request asks Mr. Crow to admit that Plaintiff never received any reprimand, demerit, or negative performance evaluation during his employment. Mr. Crow’s objection to that request does not prove he lacks evidence for his Ninth Affirmative Defense. [*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891-893.]

Counsel’s argument about what discovery revealed is not evidence. Plaintiff failed to meet his initial burden of either negating an essential element of the Ninth Affirmative Defense or demonstrating that Defendants lack proof to support it. The motion is **DENIED**.

d. Twenty-First.

Defendants assert in their Twenty-First Affirmative Defense that “no supervisor had knowledge of the alleged acts of discrimination, if any, that Plaintiff’s claims occurred.” [Answer at 5:21-24.] Plaintiff’s Facts 5 and 6 establish that Mr. Crow did not know of Plaintiff’s medical restrictions at the time of the January 28, 2022, email—an alleged discriminatory act referenced in the Complaint. Thus, Plaintiff fails to meet his initial burden of negating this affirmative defense. Even if he successfully shifted the burden of production, Defendants’ additional evidence raises triable factual issues regarding their Twenty-First Affirmative Defense. [*See, e.g.*, Defendants’ Undisputed Material Facts (“Defense Fact(s)”) 25, 26, 29, and 30.] The motion is **DENIED**.

e. Twenty-Fifth.

Defendants’ Twenty-Fifth Affirmative Defense claims that they “provided Plaintiff with reasonable accommodations as required by the applicable federal and California law.” [Answer at 6:12-15.] Plaintiff’s separate statement omits any fact regarding the outcome of the interactive process discussions. [Plaintiff’s Facts 17-19.] Therefore, Plaintiff fails to meet his initial summary-adjudication burden. Even if Plaintiff shifted the burden of production, the evidence from Defendants presents triable factual issues because Hartnell determined that Plaintiff could perform all his duties remotely, and Ms. Rose agreed to allow Plaintiff to work remotely as an ongoing accommodation. [Defense Fact 42.] The motion is **DENIED**.

f. Twenty-Sixth.

The motion is **GRANTED** because Defendants have withdrawn this defense from their Answer. [Opp. at 11:9-11.]

g. Twenty-Seventh.

Defendants’ Twenty-Seventh Affirmative Defense claims that they “engaged in the interactive process with Plaintiff as required by applicable federal and California law.” [Answer at 6:20-23.] Plaintiff’s evidence focuses solely on the delay in initiating the interactive process, noting that his injury occurred in 2019 and the process began only in February 2022, and on contested characterizations of the process’s quality. [Plaintiff’s Facts 22-24, 26-29.] Plaintiff did not meet his initial summary-adjudication burden because his evidence neither proves

untimeliness as a matter of law nor disproves the existence of an interactive process. The evidence cited in Defense Facts 22-23 shows that (1) Hartnell initiated the interactive process in February 2022, (2) Hartnell believed Plaintiff did not directly communicate his disability status, work restrictions, or accommodations to Hartnell, and (3) Hartnell denied knowing about Plaintiff's work restrictions for two years. Additionally, Plaintiff does not address how the COVID-19 shutdown affected the interactive process timeline. The motion is **DENIED**.

h. Twenty-Eighth.

The Twenty-Eighth Affirmative Defense argues that "Plaintiff failed to engage in the interactive process with Defendants as required by applicable federal and California law." [Answer at 6:24-27.] Plaintiff provides only one fact: that he attended a September 2022 meeting. [Defense Fact 30.] Defendants' critique of Plaintiff's oversimplification of the interactive process is justified. Attending one meeting, without more, does not disprove this defense. Plaintiff did not meet his initial burden. "It is an employee's responsibility to understand his or her own physical or mental condition well enough to present the employer at the earliest opportunity with a concise list of restrictions that must be met to accommodate the employee. As Barnett makes clear, it is the responsibility of both sides to keep communications open, and neither side has the right to obstruct the process." [*Jensen v. Wells Fargo Bank* (2000) 85 Cal.App.4th 245, 266.] That Plaintiff participated in a meeting in September 2022 fails to provide sufficient evidence to negate the defense. The motion is **DENIED**.

i. Twenty-Ninth.

The motion is **GRANTED** because Defendants have withdrawn this defense from their Answer. [Opp. at 11:9-11.]

Conclusion.

1. Plaintiff's motion for summary adjudication is **GRANTED** as to Defendants' Fifth, Seventh, Twenty-Sixth, and Twenty-Ninth Affirmative Defenses.
2. The motion is **DENIED** as to Defendants' Second, Ninth, Twenty-First, Twenty-Fifth, Twenty-Seventh, and Twenty-Eighth Affirmative Defenses.
3. Plaintiff's RJN is **GRANTED**.
4. Plaintiff's Objection No. 1 is **SUSTAINED**.
5. Plaintiff's Objection Nos. 2 and 3 are **OVERRULED**.
6. Defendants' Objection Nos. 1-3 are **OVERRULED**.
7. Defendants' Objection No. 4 is **SUSTAINED**.

Defendants shall prepare the Proposed Order consistent with this Tentative Ruling.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED**. You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.